

Thus Judge Rector's Court had such an abundance of jurisdiction of the subject matter of the case pending before him that there can be no question but what the doctrine of jurisdictional immunity applies. The sole contention which Plaintiff puts forward in his argument that the doctrine is inapplicable is based on his mistaken perception of the jurisdictional requirements involved in the doctrine of jurisdictional immunity. Even assuming, arguendo, that there was any departure from the letter and spirit of the law in Judge Rector's actions such assumed departure was solely one of a slight "excess of jurisdiction" and does not prevent the application of the doctrine of judicial immunity. Bradley v. Fisher, supra and Jacobson v. Schaefer, supra.

When the plaintiff's misconception of the law is corrected it is obvious that there is no genuine issue of material fact in this case.